TURFIN

USER TERMS & CONDITIONS

Effective Date: _____

Last Updated: _____

USER TERMS & CONDITIONS

These User Terms & Conditions ("**Terms**", "**Agreement**" or "**Terms of Use**") constitute a legally binding agreement between **Turfin**, a technology platform facilitating the online discovery, booking and payment of sports facilities including but not limited to football turfs, cricket turfs, badminton courts, tennis courts, pickleball courts, basketball courts, volleyball courts, swimming pools, indoor sports facilities, sports academies, recreational grounds, fitness arenas, sports complexes and other recreational venues (hereinafter referred to as "**Turfin**", "**Platform**", "**Company**", "**We**", "**Us**" or "**Our**"), and every individual, organisation or entity accessing, browsing, registering, making bookings or otherwise using the Platform (hereinafter referred to as the "**User**", "**Customer**", "**You**" or "**Your**").

These Terms govern every interaction between the User and Turfin through the website, mobile application, mobile website, APIs, social media integrations, WhatsApp integrations or any other digital interface operated by Turfin.

By creating an account, browsing the Platform, making a booking, making any payment, clicking the button stating **"I Agree"**, **"Accept"**, **"Proceed"**, **"Book Now"**, or by otherwise using the Platform, the User expressly acknowledges that he/she has carefully read, understood and voluntarily accepted these Terms and agrees to be legally bound by them.

If the User does not agree with any provision contained herein, the User shall immediately discontinue use of the Platform.

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1. DEFINITIONS

Unless the context otherwise requires, the following expressions shall have the meanings assigned below:

1.1 "Platform" means the website, mobile application, software, APIs, online portals and all digital interfaces operated under the brand name "Turfin".

1.2 "Turfin" means the owner and operator of the Platform together with its successors, assigns, affiliates, subsidiaries, employees, directors, officers, consultants, agents and authorised representatives.

1.3 "User" means any individual or legal entity accessing or using the Platform, whether or not registered.

1.4 "Registered User" means a User who has successfully created an account on the Platform.

1.5 "Guest User" means a User permitted to make bookings without permanent account registration.

1.6 "Turf Owner" means the owner, lessee, operator, manager or authorised representative of any sports facility listed on the Platform.

1.7 "Sports Facility" includes any turf, sports arena, indoor stadium, outdoor ground, court, swimming pool, academy, recreational area or similar venue listed on the Platform.

1.8 "Booking" means reservation of any sports facility through the Platform.

1.9 "Booking Amount" means the total amount payable by the User towards the booking.

1.10 "Advance Amount" means the amount payable at the time of booking.

1.11 "Balance Amount" means the remaining booking amount payable directly to the Turf Owner or through the Platform, as applicable.

1.12 "Platform Charges" means convenience fee, technology fee, service fee or any other charges levied by Turfin.

1.13 "Applicable Taxes" means GST, cess and any other taxes imposed under applicable laws.

1.14 "Business Day" means any day other than a Sunday or a public holiday in the State of Madhya Pradesh.

1.15 "Content" means text, graphics, logos, photographs, videos, ratings, reviews, software, databases, designs and all other information available on the Platform.

1.16 "Payment Gateway" means any RBI authorised payment service provider integrated with the Platform.

1.17 "Force Majeure Event" shall have the meaning assigned under Clause 42 of these Terms.

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2. ACCEPTANCE OF TERMS

2.1 These Terms constitute an electronic record within the meaning of the Information Technology Act, 2000 and the rules framed thereunder.

2.2 No physical, electronic or digital signature shall be necessary to make these Terms legally enforceable.

2.3 The User expressly agrees that clicking "Accept", "Continue", "Book", "Proceed", making any payment or otherwise using the Platform shall constitute unconditional acceptance of these Terms.

2.4 The User confirms that he/she has sufficient legal capacity to enter into a binding contract under the laws of India.

2.5 These Terms shall remain binding upon every User until the account is terminated or deleted, subject to the survival clauses contained herein.

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3. NATURE OF THE PLATFORM

3.1 Turfin is a technology-enabled online marketplace facilitating the discovery and booking of sports facilities offered by independent Turf Owners.

3.2 Turfin does not ordinarily own, lease, possess, operate or manage any sports facility listed on the Platform unless expressly specified.

3.3 Every Turf Owner independently determines:

(a) availability of slots;

(b) pricing;

(c) operating hours;

(d) facilities offered;

(e) house rules;

(f) cancellation policy; and

(g) operational standards.

3.4 Turfin provides only technological infrastructure enabling Users and Turf Owners to interact digitally.

3.5 Unless expressly stated otherwise, Turfin is not a party to the contract governing actual use of the sports facility.

3.6 Turfin neither guarantees nor warrants the quality, safety, legality, suitability or uninterrupted availability of any listed sports facility.

3.7 The User acknowledges that the responsibility for operation, maintenance, cleanliness, lighting, parking, washrooms, sports equipment, security arrangements and overall management of the sports facility rests solely with the respective Turf Owner.

3.8 Turfin reserves the right to remove, suspend or delist any Turf Owner or sports facility at any time without assigning reasons.

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4. ELIGIBILITY

4.1 Only persons competent to contract under the Indian Contract Act, 1872 may use the Platform.

4.2 Individuals below eighteen (18) years may use the Platform only through or under the supervision of their parent or lawful guardian.

4.3 The parent or guardian shall remain fully responsible for every booking made by a minor.

4.4 Users acting on behalf of any company, partnership, trust, institution or organisation represent that they possess full authority to bind such entity.

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5. ACCOUNT REGISTRATION

5.1 Registration may require mobile number verification through OTP.

5.2 Turfin may additionally require email verification, Aadhaar verification, PAN verification or any other KYC documentation wherever considered necessary.

5.3 The User warrants that every detail furnished during registration shall be true, accurate, complete and up-to-date.

5.4 Furnishing false identity, impersonation or misleading information shall constitute material breach of these Terms.

5.5 The User shall immediately update any change in contact information.

5.6 Turfin reserves the absolute right to reject, suspend or terminate any registration without assigning reasons.

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6. ACCOUNT SECURITY

6.1 The User shall maintain confidentiality of passwords, OTPs, login credentials and authentication details.

6.2 Every activity carried out using the User's account shall be deemed to have been authorised by the User.

6.3 The User shall immediately notify Turfin regarding any suspected unauthorised access.

6.4 Turfin shall not be liable for losses arising from unauthorised use caused due to negligence of the User.

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7. USER REPRESENTATIONS AND WARRANTIES

The User represents and warrants that:

(a) all information provided is true and complete;

(b) the User shall comply with all applicable laws;

(c) the User shall not misuse the Platform;

(d) the User shall honour confirmed bookings;

(e) the User shall make payments honestly;

(f) the User shall not engage in fraudulent chargebacks;

(g) the User shall not attempt to bypass the Platform for dishonest purposes;

(h) the User shall not interfere with Platform operations;

(i) the User shall comply with instructions issued by Turfin and the Turf Owner.

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8. BOOKING PROCESS

8.1 Bookings may be made only through the booking flow prescribed on the Platform.

8.2 A booking request shall not constitute confirmation.

8.3 Booking shall be deemed confirmed only after:

(a) successful payment of the required amount;

(b) generation of Booking ID; and

(c) confirmation communicated through the Platform.

8.4 Turfin reserves the right to refuse or cancel any booking in cases of suspected fraud, duplicate booking, technical error, pricing error, violation of law or breach of these Terms.

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9. PRICING

9.1 Prices displayed on the Platform are ordinarily provided by the respective Turf Owner.

9.2 Prices may vary depending upon:

(a) peak hours;

(b) weekends;

(c) public holidays;

(d) tournaments;

(e) promotional offers;

(f) dynamic pricing mechanisms.

9.3 Turfin reserves the right to correct any inadvertent pricing error prior to confirmation.

9.4 The User agrees that no booking shall be binding until confirmed.

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10. PAYMENTS

10.1 Payments may be collected through authorised Payment Gateways integrated with the Platform.

10.2 Depending upon the applicable booking model, Users may be required to:

(a) pay the entire Booking Amount online;

(b) pay only an advance amount online and the balance directly to the Turf Owner;

(c) pay the balance through the Platform; or

(d) adopt any other payment mechanism notified by Turfin.

10.3 The User expressly authorises Turfin and its authorised Payment Gateway partners to collect payments on behalf of the booking process.

10.4 Payment obligations shall survive irrespective of the mode of collection.

10.5 Any bank charges, payment gateway charges or statutory deductions applicable to the transaction may be recovered in accordance with applicable law and the Platform's policies.

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11. PAYMENT AUTHORIZATION

11.1 By making a payment through the Platform, the User irrevocably authorises Turfin and its integrated Payment Gateway service providers to process the transaction in accordance with the booking selected.

11.2 The User confirms that all payment instruments used by the User belong to the User or are used with the lawful consent of the owner.

11.3 The User shall not initiate frivolous disputes, fraudulent reversals or chargebacks after availing the booked services.

11.4 In the event of any fraudulent chargeback or reversal, Turfin reserves the right to recover the corresponding amount together with applicable costs, bank charges, legal expenses and interest, in addition to suspending or terminating the User's account.

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12. BOOKING CONFIRMATION

12.1 A booking shall be deemed confirmed only upon successful completion of the booking process and issuance of a unique Booking Identification Number ("Booking ID") through the Platform.

12.2 The Booking ID generated by the Platform shall be conclusive evidence of the booking details recorded in Turfin's electronic systems.

12.3 The User shall carefully verify the booking details immediately upon receipt of the confirmation. Any discrepancy shall be reported to Turfin within thirty (30) minutes of receipt of the booking confirmation.

12.4 Turfin shall not be responsible for errors arising from incorrect information entered by the User including, but not limited to, incorrect date, time slot, venue, mobile number or email address.

12.5 Booking confirmation is always subject to operational availability and may be withdrawn in exceptional circumstances including technical failures, duplicate bookings, payment failures, fraud detection or force majeure events.

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13. ARRIVAL POLICY

13.1 The User shall report at the booked Sports Facility sufficiently in advance to enable timely commencement of the booked session.

13.2 Unless a different reporting time is displayed on the Platform, the User shall report at least fifteen (15) minutes prior to the scheduled commencement of the booking.

13.3 The User shall complete all necessary entry formalities, identity verification, equipment collection and other procedures before commencement of the booked slot.

13.4 Delay caused due to traffic, weather, vehicle breakdown, navigation errors or any personal reason shall remain solely the responsibility of the User.

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14. GRACE PERIOD

14.1 Every confirmed booking shall ordinarily remain reserved for the User for a maximum grace period of thirty (30) minutes from the scheduled commencement time unless a different grace period is specifically displayed on the Platform.

14.2 If the User fails to report within the prescribed grace period, the Turf Owner may, at its sole discretion, declare the booking as a "No Show".

14.3 Upon expiry of the grace period, the Turf Owner may allot the slot to another customer without any further notice.

14.4 The User shall not claim any right to extension of playing time merely because of late arrival.

14.5 Turfin shall not be responsible for any loss arising from delayed reporting by the User.

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15. NO-SHOW POLICY

15.1 A User shall be treated as a "No Show" where:

(a) the User fails to report within the applicable grace period;

(b) the User voluntarily abandons the booking;

(c) the User refuses to comply with entry requirements;

(d) the User is denied entry due to intoxication, violent behaviour or violation of applicable rules.

15.2 Refunds relating to No-Show bookings shall be governed by the applicable cancellation policy.

15.3 Repeated No-Show behaviour may result in temporary suspension, permanent suspension or restriction of future bookings.

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16. EXTENSION OF PLAYING TIME

16.1 Every booking is strictly limited to the duration selected at the time of booking.

16.2 Extension of playing time shall always remain subject to availability.

16.3 Neither Turfin nor the Turf Owner shall be under any obligation to extend any booking.

16.4 Additional charges applicable for extended usage shall be payable immediately.

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17. DELAY CAUSED BY PREVIOUS USERS

17.1 The User acknowledges that sports facilities operate continuously throughout the day.

17.2 Minor delays may occasionally occur due to previous bookings exceeding scheduled time, cleaning operations, maintenance or operational reasons.

17.3 Reasonable delays shall not constitute deficiency of service.

17.4 Wherever reasonably possible, the Turf Owner shall endeavour to provide proportionate adjustment of playing time.

17.5 Turfin shall not be liable for any indirect loss arising from such operational delays.

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18. CANCELLATION BY USER

18.1 Users may cancel bookings only through the cancellation mechanism provided on the Platform.

18.2 Cancellation requests made through telephone calls, WhatsApp messages or social media shall not be treated as valid unless expressly acknowledged by Turfin.

18.3 Refund eligibility shall depend upon:

(a) timing of cancellation;

(b) cancellation policy applicable to the relevant Sports Facility;

(c) promotional conditions;

(d) statutory deductions;

(e) payment gateway processing.

18.4 Convenience fees, platform charges, payment gateway charges and applicable taxes may be non-refundable to the extent permitted under law.

18.5 Refund timelines may vary depending upon banking systems and payment gateway processing.

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19. CANCELLATION BY TURF OWNER

19.1 The Turf Owner may cancel or reschedule bookings in circumstances including:

(a) emergency maintenance;

(b) electrical failures;

(c) weather conditions;

(d) government restrictions;

(e) safety concerns;

(f) double booking due to technical failure;

(g) any circumstance beyond reasonable control.

19.2 Wherever practicable, Users shall be informed promptly.

19.3 Refunds or rescheduling in such cases shall be governed by the applicable refund policy.

19.4 Turfin shall use commercially reasonable efforts to facilitate communication between the User and the Turf Owner but does not guarantee availability of alternative slots.

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20. REFUND POLICY

20.1 Refunds, wherever applicable, shall ordinarily be processed through the original mode of payment.

20.2 Refund timelines displayed on the Platform are indicative only.

20.3 Actual credit depends upon banking institutions, payment gateways and card issuing banks.

20.4 Turfin shall not be liable for delays attributable to third-party financial institutions.

20.5 No cash refund shall ordinarily be provided.

20.6 Refunds shall always remain subject to deduction of applicable taxes, payment gateway charges and other deductions permitted by law.

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21. WEATHER CONDITIONS

21.1 Outdoor sports are inherently subject to weather conditions.

21.2 Rain, excessive heat, storms, fog, lightning or other climatic conditions may affect playability.

21.3 The Turf Owner shall determine whether the Sports Facility remains operational.

21.4 Turfin shall not be liable for cancellation or interruption arising due to adverse weather.

21.5 Refunds or rescheduling, if any, shall be governed by the applicable policy of the Turf Owner.

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22. USER CONDUCT

22.1 Users shall behave in a lawful, respectful and sportsmanlike manner at all times.

22.2 Users shall comply with all lawful directions issued by the Turf Owner, security personnel and authorised representatives.

22.3 Users shall maintain cleanliness and hygiene.

22.4 Users shall not disturb neighbouring properties or other players.

22.5 The User shall comply with all safety instructions displayed at the Sports Facility.

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23. PROHIBITED ACTIVITIES

The User shall not:

(a) consume prohibited narcotic substances;

(b) possess illegal drugs;

(c) carry firearms, explosives or dangerous weapons;

(d) indulge in gambling or betting activities prohibited by law;

(e) damage any equipment;

(f) enter restricted areas;

(g) create nuisance;

(h) abuse staff;

(i) use abusive, threatening or obscene language;

(j) indulge in discrimination based on religion, caste, gender or disability;

(k) commit any criminal act;

(l) violate any applicable law.

Violation of this Clause may result in immediate removal from the Sports Facility without refund.

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24. ALCOHOL AND SMOKING

24.1 Consumption of alcohol shall be governed by the rules applicable to the respective Sports Facility and prevailing law.

24.2 Smoking shall be permitted only in designated areas, wherever legally permissible.

24.3 Users found intoxicated or under the influence of prohibited substances may be denied entry.

24.4 No refund shall ordinarily be payable in such circumstances.

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25. DAMAGE TO PROPERTY

25.1 Users shall exercise reasonable care while using the Sports Facility.

25.2 Any damage caused by the User to the premises, turf, flooring, equipment, furniture, lighting, lockers, washrooms, parking areas or any other property shall be the sole responsibility of the User.

25.3 The User agrees to reimburse the actual cost of repair or replacement together with any consequential losses suffered by the Turf Owner.

25.4 Turfin may facilitate recovery of such amounts from the User where legally permissible.

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26. LOSS OF PERSONAL BELONGINGS

26.1 Users are advised not to carry valuables.

26.2 The User shall remain solely responsible for safeguarding personal belongings.

26.3 Turfin shall not be liable for theft, loss or damage to personal articles including mobile phones, wallets, jewellery, sports equipment or vehicles.

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27. SPORTS EQUIPMENT

27.1 Sports equipment supplied by the Turf Owner shall be used responsibly.

27.2 Equipment shall not be removed from the premises without prior permission.

27.3 Users shall remain liable for damage caused due to negligence or misuse.

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28. HEALTH DECLARATION

28.1 The User voluntarily participates in sports activities after assessing his/her own physical fitness.

28.2 The User confirms that he/she does not suffer from any medical condition that makes participation unsafe.

28.3 Users are advised to consult a qualified medical practitioner before engaging in strenuous sporting activities where necessary.

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29. ASSUMPTION OF RISK

29.1 The User acknowledges that participation in sporting activities inherently involves risks of injury, illness, disability and, in rare cases, death.

29.2 Such risks include, without limitation, slips, falls, collisions, muscular injuries, fractures, dehydration, heat exhaustion, cardiac events and injuries caused by other participants or sports equipment.

29.3 The User voluntarily assumes all such inherent risks.

29.4 Nothing contained herein shall exclude liability where such exclusion is prohibited under applicable law.

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30. MEDICAL EMERGENCIES

30.1 In the event of a medical emergency, the Turf Owner may arrange first aid or emergency medical assistance on a best-efforts basis.

30.2 All costs relating to medical treatment, ambulance services, hospitalization or medicines shall be borne solely by the User.

30.3 Turfin does not provide medical services and shall not be responsible for medical outcomes.

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31. CHILDREN AND MINORS

31.1 Parents and guardians shall supervise minors at all times.

31.2 Turfin shall not be responsible for injuries arising due to lack of parental supervision.

31.3 The parent or guardian accepts full responsibility for acts and omissions of the minor.

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32. SECURITY DEPOSIT

32.1 Certain Sports Facilities may require payment of a refundable security deposit.

32.2 Such security deposit shall be governed by the policy applicable to the concerned Sports Facility.

32.3 Deductions may be made towards damages, penalties or unpaid dues.

32.4 Refund of the security deposit shall be subject to inspection by the Turf Owner.

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33. CCTV SURVEILLANCE

33.1 The User acknowledges that the Sports Facility may be equipped with Closed-Circuit Television ("CCTV") cameras or other surveillance systems for the purposes of security, safety, crime prevention, operational management and dispute resolution.

33.2 The User expressly consents to being recorded while entering, exiting or using the Sports Facility.

33.3 CCTV recordings shall remain the exclusive property of the respective Turf Owner or the lawful owner of such recordings.

33.4 Where legally permissible, Turfin may request access to such recordings for investigation of disputes, fraudulent transactions, safety incidents or legal proceedings.

33.5 The User shall not claim any compensation merely on account of lawful CCTV surveillance.

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34. PHOTOGRAPHY, VIDEOGRAPHY AND PROMOTIONAL CONTENT

34.1 The User may occasionally appear incidentally in photographs or videos captured during tournaments, sporting events or promotional activities conducted at the Sports Facility.

34.2 Such incidental appearance shall not entitle the User to any royalty or compensation.

34.3 If Turfin intends to use any identifiable image, interview or promotional material specifically featuring the User for commercial advertising, separate consent shall be obtained wherever required by applicable law.

34.4 Users shall not photograph or record other individuals in violation of applicable privacy laws or without appropriate consent.

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35. USER REVIEWS, RATINGS AND FEEDBACK

35.1 Users may submit reviews, ratings, comments and feedback regarding Sports Facilities.

35.2 Reviews shall be honest, accurate and based upon genuine personal experience.

35.3 Users shall not publish false, defamatory, abusive, obscene, discriminatory or misleading reviews.

35.4 Turfin reserves the right to moderate, edit, decline or remove any review which, in its reasonable opinion, violates these Terms or applicable law.

35.5 Submission of a review grants Turfin a non-exclusive, worldwide, royalty-free licence to display, reproduce and publish such review on the Platform.

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36. COMMUNICATIONS

36.1 The User consents to receive communications from Turfin through SMS, WhatsApp, email, push notifications, telephone calls or any other electronic mode in connection with bookings, account activity, customer support, security alerts, refunds, invoices and legal notices.

36.2 Promotional communications shall be governed by applicable law and the User's communication preferences.

36.3 The User shall ensure that the registered mobile number and email address remain active and accessible.

36.4 Turfin shall not be responsible for communication failures resulting from incorrect contact details or failures attributable to telecom operators or internet service providers.

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37. FRAUD PREVENTION

37.1 Turfin reserves the right to employ automated and manual fraud detection systems to identify suspicious activity.

37.2 The User agrees that bookings may be delayed, cancelled or subjected to additional verification where fraud is reasonably suspected.

37.3 Indicators of suspicious activity may include, without limitation:

(a) multiple bookings using different accounts;

(b) abnormal payment behaviour;

(c) repeated failed payment attempts;

(d) use of stolen payment instruments;

(e) fake identities;

(f) unusual login patterns;

(g) repeated cancellations intended to misuse promotional offers; or

(h) any activity reasonably considered fraudulent.

37.4 Turfin reserves the right to refuse service where fraudulent activity is reasonably suspected.

38. MULTIPLE ACCOUNTS

38.1 A User shall ordinarily maintain only one personal account unless expressly permitted by Turfin.

38.2 Creation of multiple accounts for obtaining promotional benefits, referral incentives, discounts or any unlawful advantage is prohibited.

38.3 Turfin may merge, suspend or permanently disable duplicate accounts without prior notice.

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39. PROMOTIONAL OFFERS AND REFERRALS

39.1 Promotional offers, discount coupons, cashback schemes and referral programmes are voluntary marketing initiatives and may be modified, suspended or withdrawn at any time.

39.2 Promotional benefits shall not constitute a vested contractual right.

39.3 Any misuse of promotional schemes shall render the User liable for cancellation of benefits and suspension of account.

39.4 Turfin reserves the right to recover the value of promotional benefits obtained through fraud or misuse.

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40. PAYMENT DISPUTES AND CHARGEBACKS

40.1 The User agrees not to initiate any chargeback, payment reversal or payment dispute after successfully availing the booked Sports Facility except where such dispute is bona fide.

40.2 Where any payment is reversed by a financial institution after the User has utilised the booked services, the User shall remain liable to pay the outstanding amount.

40.3 Turfin may recover such outstanding dues through lawful means, including adjustment against future refunds or legal proceedings.

40.4 Fraudulent chargebacks may result in permanent suspension of the User's account and reporting to appropriate authorities.

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41. USER DEVICES

41.1 The User shall be responsible for maintaining the security of devices used for accessing the Platform.

41.2 Turfin shall not be responsible for malware, viruses, spyware or other security breaches affecting the User's device.

41.3 Users shall ensure that only authorised persons have access to their registered mobile number and account credentials.

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42. PLATFORM AVAILABILITY

42.1 Turfin endeavours to maintain uninterrupted availability of the Platform.

42.2 However, temporary interruptions may occur due to scheduled maintenance, software upgrades, hardware failures, internet outages, cyber incidents or circumstances beyond reasonable control.

42.3 Turfin does not guarantee uninterrupted, error-free or continuous operation of the Platform.

42.4 Temporary unavailability shall not constitute deficiency of service where reasonable efforts have been made to restore operations.

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43. SOFTWARE UPDATES

43.1 Turfin may release updates, patches, bug fixes or feature enhancements from time to time.

43.2 Continued use of the Platform after such updates shall constitute acceptance of the revised software.

43.3 Certain features may cease to function properly unless the latest version of the application is installed.

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44. INTELLECTUAL PROPERTY

44.1 The Platform, including its software, source code, object code, databases, algorithms, user interface, layout, design, graphics, trademarks, logos, trade names, content, compilations and other intellectual property, shall remain the exclusive property of Turfin or its licensors.

44.2 Nothing contained in these Terms transfers any intellectual property rights to the User.

44.3 The User shall not:

(a) copy;

(b) reproduce;

(c) modify;

(d) reverse engineer;

(e) decompile;

(f) distribute;

(g) commercially exploit; or

(h) create derivative works from the Platform without prior written consent of Turfin.

44.4 Unauthorised use may result in civil and criminal proceedings.

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45. USER CONTENT

45.1 The User shall retain ownership of content uploaded by the User.

45.2 By uploading any lawful content, the User grants Turfin a non-exclusive, worldwide, royalty-free licence to host, store, reproduce, display and distribute such content solely for operating, improving and promoting the Platform.

45.3 The User warrants that uploaded content does not infringe third-party rights.

45.4 Turfin may remove unlawful or objectionable content without prior notice.

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46. DATA ACCURACY

46.1 Information displayed on the Platform regarding amenities, facilities, pricing, photographs, availability and services is substantially based upon information provided by Turf Owners.

46.2 Although Turfin endeavours to maintain accurate information, inadvertent inaccuracies may occasionally occur.

46.3 Users are encouraged to verify critical information before making bookings.

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47. THIRD-PARTY SERVICES

47.1 The Platform may integrate payment gateways, mapping services, messaging services, analytics tools and other third-party technologies.

47.2 Such third-party services shall remain governed by their own respective terms and privacy policies.

47.3 Turfin shall not be responsible for failures attributable exclusively to third-party service providers.

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48. ELECTRONIC RECORDS

48.1 The User agrees that all electronic records maintained by Turfin shall be admissible as evidence in accordance with applicable law.

48.2 Such electronic records include, without limitation:

(a) booking records;

(b) payment records;

(c) invoices;

(d) OTP verification logs;

(e) server logs;

(f) IP address logs;

(g) device identifiers;

(h) GPS location records where enabled;

(i) customer support communications;

(j) emails;

(k) WhatsApp messages exchanged through official channels;

(l) push notification logs; and

(m) audit logs.

48.3 The User shall not dispute the authenticity of such electronic records solely on the ground that they are maintained in electronic form.

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49. ELECTRONIC CONSENT

49.1 Clicking "Accept", "Continue", "Proceed", "Book Now", "Pay Now" or any similar button shall constitute legally valid electronic consent.

49.2 Such electronic acceptance shall be treated as equivalent to execution of a written contract to the extent recognised under applicable law.

49.3 The User waives any objection based solely upon the absence of a physical signature.

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50. RECORD RETENTION

50.1 Turfin may retain booking records, payment information and other transaction records for such period as may be required under applicable law, internal compliance requirements or legitimate business purposes.

50.2 Even after deletion of the User account, certain records may continue to be retained where required by law or for resolution of disputes.

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51. ACCOUNT SUSPENSION

51.1 Turfin may temporarily suspend any User account where it reasonably believes that:

(a) these Terms have been violated;

(b) fraudulent activity has occurred;

(c) security has been compromised;

(d) payment disputes remain unresolved;

(e) misuse of the Platform has taken place; or

(f) suspension is necessary for compliance with law.

51.2 Suspension may remain in force until completion of investigation.

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52. TERMINATION OF ACCOUNT

52.1 Turfin may permanently terminate a User account for repeated or serious violations of these Terms.

52.2 Termination shall not extinguish any outstanding financial obligations of the User.

52.3 Clauses relating to payments, indemnity, limitation of liability, dispute resolution, intellectual property and governing law shall survive termination.

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53. USER INDEMNITY

53.1 The User agrees to defend, indemnify and keep indemnified Turfin, its promoters, directors, shareholders, officers, employees, consultants, affiliates, licensors, payment partners, technology partners and authorised representatives ("Indemnified Parties") against all losses, claims, damages, liabilities, penalties, costs, legal expenses, interest, demands, proceedings or actions arising from or relating to:

(a) breach of these Terms;

(b) misuse of the Platform;

(c) fraudulent or illegal activities;

(d) violation of applicable laws;

(e) infringement of intellectual property rights;

(f) damage caused to any Sports Facility;

(g) bodily injury or property damage caused by the User;

(h) chargebacks, payment reversals or fraudulent payment disputes;

(i) false, defamatory or misleading content uploaded by the User;

(j) any claim made by a third party arising from the User's conduct.

53.2 This indemnity shall survive suspension, termination or deletion of the User's account.

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54. LIMITATION OF LIABILITY

54.1 To the fullest extent permitted by applicable law, Turfin shall not be liable for any indirect, incidental, consequential, special, exemplary or punitive damages.

54.2 Without prejudice to the foregoing, Turfin shall not be liable for:

(a) loss of profits;

(b) loss of business opportunities;

(c) loss of goodwill;

(d) emotional distress;

(e) loss of reputation;

(f) loss of data;

(g) interruption of sporting events;

(h) travel expenses incurred by the User;

(i) accommodation expenses;

(j) missed tournaments or competitions.

54.3 Subject to applicable law, Turfin's aggregate liability arising out of any booking shall not exceed the total Platform Service Fee actually retained by Turfin in respect of the disputed booking.

54.4 Nothing contained herein shall exclude liability that cannot be excluded under applicable law.

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55. DISCLAIMER OF WARRANTIES

55.1 Except as expressly provided in these Terms, the Platform is provided on an "as is" and "as available" basis.

55.2 Turfin makes no representation or warranty regarding:

(a) uninterrupted availability of the Platform;

(b) continuous internet connectivity;

(c) suitability of any Sports Facility;

(d) uninterrupted electricity or water supply;

(e) parking availability;

(f) quality of sports equipment;

(g) safety of premises;

(h) weather conditions;

(i) compatibility with every mobile device;

(j) absence of software defects.

55.3 Users acknowledge that sporting activities involve inherent operational uncertainties beyond Turfin's control.

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56. FORCE MAJEURE

56.1 Turfin shall not be liable for any delay, interruption, cancellation or failure to perform any obligation where such failure arises from events beyond its reasonable control.

56.2 Force Majeure Events include, without limitation:

(a) flood;

(b) earthquake;

(c) cyclone;

(d) fire;

(e) epidemic;

(f) pandemic;

(g) war;

(h) terrorism;

(i) civil unrest;

(j) riots;

(k) governmental restrictions;

(l) court orders;

(m) internet outages;

(n) cyber attacks;

(o) ransomware incidents;

(p) payment gateway failures;

(q) labour strikes;

(r) power failures; or

(s) any other event beyond reasonable control.

56.3 During the continuance of a Force Majeure Event, the obligations of Turfin shall stand suspended to the extent affected.

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57. PRIVACY AND DATA PROTECTION

57.1 Collection, storage, processing and use of personal information shall be governed by Turfin's Privacy Policy.

57.2 The User consents to processing of personal information for purposes including:

(a) account creation;

(b) booking management;

(c) payment processing;

(d) fraud prevention;

(e) customer support;

(f) regulatory compliance;

(g) analytics;

(h) service improvement.

57.3 Turfin shall implement reasonable technical and organisational safeguards to protect personal information.

57.4 No security system is completely immune from cyber risks. Accordingly, Turfin does not guarantee absolute security of electronic data.

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58. COMPLIANCE WITH LAW

58.1 Users shall comply with all applicable Central, State and Local laws while using the Platform and Sports Facilities.

58.2 Users shall not utilise the Platform for any unlawful purpose including money laundering, financing of unlawful activities, identity theft or fraudulent transactions.

58.3 Turfin reserves the right to cooperate with law enforcement agencies, courts, governmental authorities and regulatory bodies wherever required by law.

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59. TAXES AND STATUTORY COMPLIANCE

59.1 The User acknowledges that applicable taxes, levies, statutory charges or government-imposed fees may be included in or charged in addition to the Booking Amount wherever applicable.

59.2 Where required under applicable law, Turfin may collect, deduct, deposit or report taxes, duties or statutory levies in accordance with legal requirements.

59.3 Users agree that Turfin may disclose transaction details to competent governmental authorities where required by law.

59.4 Nothing contained in these Terms shall be construed as permitting any User or Turf Owner to evade taxes or statutory obligations.

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60. COMPLIANCE WITH COURT ORDERS AND GOVERNMENT DIRECTIONS

60.1 Turfin may suspend bookings, restrict access, disclose information or take any action necessary for compliance with:

(a) court orders;

(b) governmental directions;

(c) statutory notices;

(d) law enforcement investigations;

(e) regulatory requirements.

60.2 Users shall not hold Turfin liable for actions taken in good faith pursuant to legal obligations.

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61. MODIFICATION OF TERMS

61.1 Turfin reserves the right to amend, modify or update these Terms from time to time.

61.2 Material modifications shall become effective upon publication on the Platform.

61.3 Continued use of the Platform after publication shall constitute acceptance of the revised Terms.

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62. ASSIGNMENT

62.1 Turfin may assign, transfer or novate its rights and obligations under these Terms to any affiliate, successor, purchaser or entity forming part of any corporate restructuring, merger or acquisition.

62.2 The User shall not assign or transfer any rights or obligations without prior written consent of Turfin.

63. NO WAIVER

63.1 Failure by Turfin to enforce any provision of these Terms shall not constitute waiver of such provision.

63.2 Any waiver shall be valid only if made expressly in writing.

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64. SEVERABILITY

64.1 If any provision of these Terms is held invalid, illegal or unenforceable by a competent court or tribunal, the remaining provisions shall continue in full force and effect.

64.2 The invalid provision shall be deemed modified to the minimum extent necessary to make it enforceable while preserving the original intent as far as legally permissible.

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65. ENTIRE AGREEMENT

65.1 These Terms, together with the Privacy Policy, Refund Policy and other policies expressly incorporated by reference, constitute the entire agreement between Turfin and the User relating to use of the Platform.

65.2 These Terms supersede all prior oral or written understandings relating to the subject matter hereof.

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66. GOVERNING LAW

66.1 These Terms shall be governed by and construed in accordance with the laws of the Republic of India.

66.2 Subject to the arbitration provisions contained herein, the parties shall comply with all applicable laws in force from time to time.

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67. DISPUTE RESOLUTION

67.1 The parties shall endeavour to resolve disputes amicably through good faith discussions.

67.2 The User shall first raise any grievance through Turfin's designated customer support or grievance mechanism before initiating formal legal proceedings.

67.3 Nothing contained herein shall restrict the statutory rights available to consumers under applicable law.

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68. ARBITRATION

68.1 Any dispute, controversy or claim arising out of or relating to these Terms, use of the Platform or any booking made through the Platform which cannot be resolved amicably within thirty (30) days shall be referred to arbitration in accordance with the provisions of the Arbitration and Conciliation Act, 1996, as amended from time to time.

68.2 The arbitration shall be conducted by a Sole Arbitrator mutually appointed by the Parties. In the event the Parties fail to mutually appoint the Arbitrator within thirty (30) days, the appointment shall be made in accordance with the provisions of the Arbitration and Conciliation Act, 1996.

68.3 The **seat and legal place of arbitration shall be Ujjain, Madhya Pradesh, India**.

68.4 The arbitration proceedings may be conducted physically, virtually or in a hybrid mode as determined by the Arbitrator.

68.5 The language of arbitration shall be **English or Hindi**, as determined by the Arbitrator after considering the convenience of the Parties, unless otherwise mutually agreed.

68.6 The arbitral award shall be final and binding upon the Parties.

68.7 Nothing contained herein shall prevent either Party from seeking interim or urgent relief from a court of competent jurisdiction.

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69. JURISDICTION

69.1 Subject to Clause 68 relating to arbitration, the Courts having territorial jurisdiction at **Ujjain, Madhya Pradesh**, shall have exclusive jurisdiction in respect of all matters arising out of or relating to these Terms to the extent permissible under applicable law.

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70. GRIEVANCE REDRESSAL

70.1 Any grievance relating to the Platform may be addressed to the designated Grievance Officer whose contact details shall be published on the Platform.

70.2 Turfin shall endeavour to acknowledge and process grievances within a reasonable period in accordance with applicable law.

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71. NOTICES

71.1 Any notice to the User may be sent through email, SMS, WhatsApp, push notification, in-app notification or any other electronic mode using the contact details available in the User's account.

71.2 Notices shall be deemed served upon transmission to the registered contact details unless proved otherwise.

72. SURVIVAL

72.1 Clauses relating to payments, taxes, indemnity, limitation of liability, intellectual property, privacy, electronic records, governing law, arbitration, jurisdiction, confidentiality and all provisions which by their nature are intended to survive shall continue to remain in force notwithstanding suspension, termination or deletion of the User's account.

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73. CONTACT DETAILS

For any queries, support requests or legal communications relating to these Terms, Users may contact Turfin through the contact details published on the Platform from time to time.

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74. ACKNOWLEDGEMENT

BY CLICKING THE BUTTON MARKED "I AGREE", "ACCEPT", "BOOK NOW", "PROCEED TO PAYMENT" OR BY ACCESSING OR USING THE PLATFORM IN ANY MANNER WHATSOEVER, THE USER ACKNOWLEDGES THAT HE/SHE HAS CAREFULLY READ, UNDERSTOOD AND VOLUNTARILY AGREED TO BE BOUND BY THESE TERMS & CONDITIONS.

THE USER FURTHER CONFIRMS THAT THESE TERMS CONSTITUTE A LEGALLY BINDING ELECTRONIC CONTRACT ENFORCEABLE IN ACCORDANCE WITH APPLICABLE LAWS OF INDIA.

— END OF USER TERMS & CONDITIONS —